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January 17, 2024

VIA ELECTRONIC MAIL

joe@rowboatcreative.com
jfzangrilli@gmail.com

Mr. Joseph F. Zangrilli
Rowboat Creative, LLC
4200 W. Diversey Avenue
Chicago, IL 60639

Dear Mr. Zangrilli:

We represent Lucas Guariglia, who, along with you, is a member and manager for Rowboat Creative, LLC. **Should you have present counsel, please immediately forward this communication to her/him. Also, please provide her/his contact information.** On numerous occasion over several months in 2023 (including April 3, 2023, May 26, 2023, June 13, 2023, June 22, 2023, June 28, 2023, December 1, 2023, and December 21, 2023), counsel for Mr. Guariglia sent you correspondence: (a) detailing your various breaches of, at minimum, the fiduciary duties you owe Mr. Guariglia and Rowboat as a member and manager, (*see, e.g., Wright v. Phillips*, 2020 Del. Ch. LEXIS 196, *17 ("Delaware's common law fiduciary duties apply to managers and managing members of Delaware LLCs")), including, but not limited to, unauthorized withdrawals and conversion of company funds, damaging client and vendor relationships, and refusing to engage in operating the business, and placing your interests ahead of the business and your "partner"; (b) outlining how it was not reasonably practicable to continue carrying on the business given your actions; and (c) making multiple propositions for resolution of the current deadlock you have created, including a proposed buyout. You have ignored responding substantively to those communications. Your conduct continues to harm the company, irreparably.

This communication informs you that should resolution of the deadlock not be reached by January 26, 2024, in line with prior proposals made or otherwise, Mr. Guariglia has instructed us to pursue all available legal remedies, including a lawsuit to dissolve the company, appoint a receiver to run the business and/or remove you from doing so. The days of tolerating your reckless, damaging, and belligerent conduct have ended.

Further, by this letter, we are demanding and expect that you will preserve all documents, including, but not limited to, any and all paper documents, contracts, records, communications (both internal and external), video or other photographic evidence, files, notes, tangible things or memoranda (hereinafter, "Documentary Evidence"), and electronically-stored information ("ESI")

(as defined in detail below) relevant to or in any way relating to Rowboat, including, but not limited to, withdrawal of company funds and communications with employees, clients, and/or vendors. For purposes of this letter, ESI includes, without limitation:

1. All electronic mail, instant messages, text messages, voicemails or other electronic communications, and information about electronic communications (including, without limitation, message contents, header information and logs of electronic mail system usage);
2. All other electronic mail and information about electronic mail (including, without limitation, message contents, header information and logs of electronic mail system usage, whether the same be located on computer hard drives, local servers or cloud storage such as Outlook 365);
3. All databases (including, without limitation, all records and fields and structural information in such data bases);
4. All logs of activity on computer systems which may have been used to process or store electronic data;
5. All word processing files and file fragments;
6. All electronic data created by application programs which process financial, accounting and billing information;
7. All files and file fragments containing information from electronic calendars and scheduling programs; and
8. All electronic data files and file fragments created or used by electronic spreadsheet programs.
9. All videos or other photographic evidence.
10. All of the above categories include not only information stored on local computers, but also such data in "cloud" storage, such as Outlook 365, Google Docs and Google Calendar, Yahoo and iCloud.

Note that preserving Documentary Evidence and ESI includes the suspension of any routine and/or purposeful deletion or destruction. As such, you must cease all shredding, destruction, modification and/or deletion of ESI and Documentary Evidence, including, without limitation, from any online storage, cloud storage, mainframe computer, smartphone, personal computer, server and any other electronic medium used for offline storage, including, without limitation, an external hard drive, backup server, magnetic tape or any other medium that stores electronic information. Such preservation must maintain data in its native format, including all metadata attached to each native file, and you should take no action which degrades or removes the ability to efficiently access and/or search such native files and metadata. Maintaining documents in hard paper copy, while deleting according or comparable ESI (*e.g.*, printing an email but deleting the email file), is not acceptable.

Finally, demand is made to immediately cease and desist from continuing to convert company funds and/or paying yourself and/or employees compensation above and beyond that entitled and/or agreed to by Mr. Guariglia.

Mr. Joseph F. Zangrilli
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This letter is without waiver to all of our client's rights and remedies. Please govern yourself accordingly.

Very truly yours,

/s/ Alexander D. Marks

cc: Frederic A. Mendelsohn
Lucas Guariglia
4862-0054-3646